

Unigenitus control case

The Constitution Unigenitus and the Appellant Resistance — a control case (*The Catholic Encyclopedia*, s.v. “Unigenitus”)

Constitution of Clement XI, 8 September 1713; article from *The Catholic Encyclopedia*, vol. XV (New York: Robert Appleton Company, 1912)

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Note on this selection: the historical control case for the “nominal recognition / proximate rule of faith” objection answered in the root README and the act-of-faith document (§XII). For decades after 1713, a large organized body — cardinals (Noailles of Paris at their head), bishops, the Sorbonne and other faculties, thousands of clergy and religious — publicly resisted a solemn dogmatic constitution of the reigning pope, appealed from him to a future general council, renewed the appeal against his successor’s confirmations, and administered dioceses and parishes in that state of resistance. Every element the modern objector cites as proof that the conciliar popes were “never truly accepted” was present on an enormous scale: rejection of papal teaching, public appeals, organized ecclesiastical resistance, decades of duration. And the conclusion no one drew — not the appellants, not their adversaries, not Rome — was that Clement XI or his successors were not popes, or had never been “accepted.” The appellants were prosecuted as rebels and (after 1718) treated as outside the communion of the Church precisely BECAUSE the man they resisted was the undoubted Vicar of Christ; their entire canonical strategy (appeal to a future council) presupposed his title. The case therefore proves by history what the sources prove by doctrine: the acceptance that certifies the title is public adherence to the man, completed at accession — compatible even with massive, prolonged, organized resistance to his acts. Mass dissent under an undoubted pope is a tragedy the Church has already survived; it is not, and has never

been read as, a retroactive defeater of the acceptance. (Cf. Billot's Savonarola test case in the 1909 entry; Muratori's contemporary polemic against the "petty theologians," 1714 entry.)

The Catholic Encyclopedia, s.v. "Unigenitus" (1912)

A celebrated Apostolic Constitution of Clement XI, condemning 101 propositions of Pasquier Quesnel. In 1671 Quesnel had published a book entitled "Abrégé de la morale de l'Evangile". It contained the Four Gospels in French, with short notes explanatory of the text, at the same time serving as aids for meditation. The work was approved by Bishop Vialart of Châlons. An enlarged edition, containing an annotated French text of the New Testament, appeared in three small volumes in 1678, and a later edition in four volumes appeared under the title "Le nouveau testament en francais avec dees réflexions morales sur chaque verse, pour en rendre la lecture plus utile et la méditation plus aisée" (Paris, 1693-94). This last edition was highly recommended by Noailles, who had succeeded Vialart as Bishop of Châlons. While the first edition of the work contained only a few Jansenistic errors, its Jansenistic tendency became more apparent in the second edition, and in its complete form, as it appeared in 1693, it was pervaded with practically all the errors of Jansenism. Several bishops forbade its reading in their dioceses, and Clement XI condemned it in his Brief, "Universi Dominici Gregis", dated 13 July, 1708. The papal Brief was, however, not accepted in France because its wording and its manner of publication were not in harmony with the "Gallican Liberties". Noailles, who had become Archbishop of Paris and cardinal, was too proud to withdraw the approbation which he had inadvertently given to the book while Bishop of Châlons, and Jansenism again raised its head. To put an end to this situation several bishops, and especially Louis XIV, asked the pope to issue a Bull in place of the Brief which the French Government did not accept. The Bull was to avoid every expression contrary to the "Gallican Liberties" and to be submitted to the French Government before publication. To avoid further scandal, the pope yielded to these humiliating conditions, and in Feb., 1712, appointed a special congregation of cardinals and theologians to cull from the work of Quesnel such propositions as were deserving of ecclesiastical censure. The most influential member of this congregation was Cardinal Fabroni.

It took the congregation eighteen months to perform its task, the result of which was the publication of the famous Bull "Unigenitus Dei Filius" at Rome, 8 Sept., 1713. The Bull begins with the warning of Christ against false prophets, especially such as "secretly spread evil doctrines under the guise of piety and introduce ruinous sects under the image of sanctity"; then it proceeds to the condemnation of 101 propositions which are taken verbatim from the last edition of Quesnel's work. The propositions are condemned respectively as "False, captious, ill-sounding, offensive to pious ears, scandalous, pernicious, rash, injurious to the Church and its practices, contumelious to Church and State, seditious, impious, blasphemous, suspected and savouring of heresy, favouring heretics, heresy, and schism, erroneous, bordering on heresy, often condemned, heretical, and reviving various heresies, especially those contained in the famous propositions of Jansenius". The first forty-three propositions repeat the errors of Baius and Jansenius on grace and predestination, such as: grace works with omnipotence and is irresistible; without grace man can only commit sin; Christ died for the elect only. The succeeding twenty-eight propositions (44-71) concern faith, hope, and charity: every love that is not supernatural is evil; without supernatural love there can be no hope in God, no obedience to His law, no good work, no prayer, no merit, no religion; the prayer of the sinner and his other good acts performed out of fear of punishment are only new sins. The last thirty propositions (72-101) deal with the Church, its discipline, and the sacraments: the Church comprises only the just and the elect; the reading of the Bible is binding on all;

sacramental absolution should be postponed till after satisfaction; the chief pastors can exercise the Church's power of excommunication only with the consent, at least presumed, of the whole body of the Church; unjust excommunication does not exclude the excommunicated from union with the Church. Besides condemning these 101 propositions, the Bull states that it finds fault with many other statements in the book of Quesnel, without, however, specifying them, and, in particular, with the translation of the New Testament, which, as the Bull reads, has been censurably altered (*damnabiliter vitiatum*) and is in many ways similar to the previously condemned French version of Mons.

Louis XIV received the Bull at Fontainebleau on 24 Sept., 1713, and sent a copy to Cardinal Noailles, who, probably before receiving it, had revoked, on 28 Sept., his approbation of the "Moral Reflections" given in 1695. The king also ordered the assembly of the French clergy to convene at Paris on 16 Oct., and designated the acceptance of the Bull as the purpose of the meeting. At the first session, on 16 Oct., Noailles appointed a committee presided over by Cardinal Rohan of Strasburg to decide upon the most suitable manner of accepting the Bull. Noailles, who took part in a few sessions of the committee, attempted to prevent an unconditional acceptance of the Bull by the committee, and when his efforts proved fruitless he would have withdrawn from the assembly if the king had not ordered him to remain. The report of the committee was for an unqualified acceptance of the Bull, and at the session of the assembly on 22 Jan., 1714, the report was accepted by a vote of forty against nine. By order of the king, the bull was registered by the Parliament on 15 Feb. and by the Sorbonne on 5 March. A pastoral instruction of Noailles, forbidding his priests under pain of suspension to accept the Bull without his authorization, was condemned by Rome. Of the bishops not present at the assembly, seven joined the opposition, while the remaining seventy-two accepted the Bull unconditionally. The opposition, with the exception of Bishop de la Brou of Mirepoix, also condemned the book of Quesnel. As a pretext of their non-acceptance of the Bull, they gave out that it was obscure. Ostensibly they postponed their acceptance only until the pope would explain its obscurity by special declarations. It is manifest that the pope could not yield to these demands without imperilling the authority of the Apostolic See.

It was the intention of Clement XI to summon Noailles before the Curia and, if needs be, despoil him of the purple. But the king and his councillors, seeing in this mode of procedure a trespass upon the "Gallican Liberties", proposed the convocation of a national council which should judge and pass sentence upon Noailles and his faction. The pope did not relish the idea of convoking a national council which might unnecessarily protract the quarrel and endanger the papal authority. He, however, drew up two Briefs, the one demanding the unconditional acceptance of the Bull by Noailles within fifteen days, on pain of losing the purple and incurring canonical punishment, the other paternally pointing out the gravity of the cardinal's offence and exhorting him to go hand in hand with the Apostolic See in opposing the enemies of the Church. Both Briefs were put in the hand of the king, with the request to deliver the less severe in case there was well-founded hope of the cardinal's speedy submission, but the more severe if he continued in his obstinacy. On the one hand, Noailles gave no hope of submission, while, on the other, the more severe of the Briefs was rejected by the king as subversive of the "Gallican Liberties". Louis XIV, therefore, again pressed the convocation of a national council but died (1 Sept., 1715) before it could be convened. He was succeeded as regent by Duke Philip of Orléans, who favoured the opponents of the Bull. The Sorbonne passed a resolution, 4 Jan., 1716, annulling its previous registration of the Bull, and twenty-two Sorbonnists who protested were removed from the faculty on 5 Feb. The Universities of Nantes and Reims now also rejected the Bull, the former on 2 Jan., the latter on 26 June. In consequence Clement XI withdrew from the Sorbonne all the papal privileges which it

possessed and deprived it of the power of conferring academic degrees on 18 Nov. He had sent two Briefs to France on 1 May. One, addressed to the regent, severely reproved him for favouring the opponents of the Bull; the other, addressed to the opposition, threatened to deprive Noailles of the purple, and to proceed canonically against all that would not accept the Bull within two months. These Briefs were not accepted by the regent because their text had not been previously submitted to his ministers. But he sent to Rome, Chevalier, the Jansenist Vicar-General of Meaux whom the pope did not, however, admit to his presence, when it became known that his sole purpose was to wrest the admission from Clement XI that the Bull was obscure and required an explanation. In a consistory held on 27 June, 1716, the pope delivered a passionate allocution, lasting three hours, in which he informed the cardinals of the treatment which the Bull had received in France, and expressed his purpose of divesting Noailles of the cardinalate. The following November he sent two new Briefs to France, one to the regent, whose co-operation he asked in suppressing the opposition to the Bull; the other to the acceptants, whom he warned against the intrigues of the recalcitrants, and requested to exhort their erring brethren to give up their resistance.

On 1 March, 1717, four bishops (Soanen of Senez, Colbert of Montpellier, Delangle of Boulogne, and de La Broue of Mirepoix) drew up an appeal from the Bull to a general council, thus founding the party hereafter known as the “appellants”. They were joined by the faculties of the Sorbonne on 5 March, of Reims on 8 March, and of Nantes on 10 March; likewise by the Bishops of Verdun on 22 March, of Pamiers on 12 April, of Châlons, Condom, Agen, and St. Malo on 21 April, of Auxerre on 14 May, and more than a year later by the Bishop of Laon, also by the Bishops of Bayonne and Angoulême. Though a personal letter of the pope, dated 25 March, and a joint letter of the cardinals at Rome urgently begged Noailles to submit, he also drew up an appeal on 3 April, “from the pope manifestly mistaken, and from the Constitution Unigenitus, in virtue of the decrees of the Councils of Constance and Basle, to the pope better informed and to a general council to be held without constraint and in a safe place”. He did not, however, publish his appeal for the present, but deposited it in the archives of the officialité of Paris. On 6 May he wrote a long letter to the pope, in which he endeavours to justify his position and that of his adherents. A few months later his appeal from the Bull was published. The appellants were soon joined by many priests and religious, especially from the Dioceses of Paris and Reims. To swell the list of appellants the names of laymen and even women were accepted. The number of appellants is said to have reached 1800 to 2000, pitifully small, if we consider that about 1,500,000 livres (\$300,000) were spent by them as bribes.

On 8 March, 1718, appeared a Decree of the Inquisition, approved by Clement XI, which condemned the appeal of the four bishops as schismatic and heretical, and that of Noailles as schismatic and approaching to heresy. Since they did not withdraw their appeal within a reasonable time, the pope issued the Bull “Pastoralis officii” on 28 Aug., 1718, excommunicating all that refused to accept the Bull “Unigenitus”. But they appealed also from this second Bull. Noailles finally made an ambiguous submission on 13 March, 1720, by signing an explanation of the Bull “Unigenitus”, drawn up by order of the French secretary of State, Abbé Dubois, and, later, approved by ninety-five bishops. After much pressure from the king and the bishops he made public this ambiguous acceptance of the Bull in his pastoral instruction of 18 Nov., 1720. But this did not satisfy Clement XI, who required an unconditional acceptance. After the death of Clement XI, 19 March, 1721, the appellants continued in their obstinacy during the pontificates of Innocent XIII (1721-24) and Benedict XIII (1724-30). Noailles, the soul of the opposition, finally made a sincere and unconditional submission on 11 Oct., 1728, and died soon after (2 May, 1729). The Apostolic See, in concerted action with the new

Archbishop Vintimille of Paris and the French Government, gradually brought about the submission of most of the appellants. (See JANSENIUS AND JANSENISM: The Convulsionaries, Decline and End of Jansenism.)

Sources SCHILL, *Die Constitution Unigenitus* (Freiburg im Br., 1876); LAFITEAU, *Histoire de la constitution Unigenitus* (Avignons, 1737); CROUSAZ-CRETET, *L'église et l'état au XVIII siècle* (Paris, 1893); LE ROY, *Le gallicanisme au XVIII siècle, la France et Rome de 1700 à 1715* (Paris, 1892); THUILLER, *La seconde phase du jansenisme* (Paris, 1901); SECHE, *Les derniers jansenistes* (Paris, 1891); DURAND, *Le jansenisme au XVIII siècle et Joachim Colbert, évêque de Montpellier* (Toulouse, 1907); GILARDONE, *La Bulle Unigenitus et la fin du jansénisme en Champagne* (Vitry, 1892); BAUER, *Quesnel und die Bulle Unigenitus in Stimmen aus Maria-Laach*, VI (Freiburg im Br., 1874), 147-64; IDEM, *Der Kardinal Noailles und die Appellanten*, *ibid.*, VII, 167-87, 492-518; BARTHELEMY, *Le cardinal Noailles* (Paris, 1888); DUBOIS, *Collecta nova actorum publ. constit. Clem. Unigenitus* (Leyden, 1725); PFAFF, *Acta publicae constitutionis Unigenitus* (Tübingen, 1728); *Procès-verbaux des assemblées du clergé de France*, VI (Paris, 1774); *Clementis XI pontificis maximi opera omnia*, ed. CARDINAL ALBANI (Frankfort, 1729). The titles of the immense number of Jansenistic pamphlets that were directed against the Bull "Unigenitus" are found in *Dictionnaire des livres jansenistes* (Antwerp, 1752).